

TENTATIVE RULINGS

FOR: July 17, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. 6 Zoom

Join by Video (Preferred)

<https://www.zoomgov.com/j/1611412615?pwd=CVuzAdEmMJNjcWp0iWBmt1blRNHvyP.1>

Join by Phone: 833 568 8864 or 833 435 1820 **Meeting ID:** 161 141 2615 **Password:** 649401

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Julia Sotomayor Feliciano

25PR000130

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: A status report is on file. Based on the Court’s review of the status report, the Court determines that continuation of administration is in the best interests of the estate and/or of interested persons. Thus, the Court orders that administration of the estate continue. (Prob. Code, § 12201, subd. (c)(2).) The matter is CONTINUED to July 07, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated if, prior thereto, the personal representative files a petition for an order for final distribution. The personal representative shall file a status report 10 days prior to the next hearing. The Clerk is directed to provide notice to the parties.

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In The Matter of The Potter Family Trust

26PR000130

PETITION TO DETERMINE OWNERSHIP OF PROPERTY BY TRUST; AND FOR ORDER DIRECTING TRANSFER OF TITLE TO TRUSTEE

TENTATIVE RULING: The petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Josefina Hernandez et al v. G.L. Mezzetta, Inc. et al

22CV001280

- [1] MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
- [2] MOTION FOR ATTORNEYS FEES, COSTS, AND CLASS REPRESENTATIVE ENHANCEMENT PAYMENTS

TENTATIVE RULING: The motions are GRANTED. The Court will sign the proposed order. The Status Conference on July 24, 2026 is therefore VACATED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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First Select Corporation v. Paniagua, J.

26-08396

HEARING OF CLAIM OF EXEMPTION

TENTATIVE RULING: The matter is CONTINUED to July 22, 2026, at 8:30 a.m. in Dept. A due to Judgment Creditor's failure to file a Proof of Service of the (1) Notice of Opposition to Claim of Exemption and (2) Notice of Hearing on Claim of Exemption, on the Judgment Debtor. (Code Civ. Proc., § 703.570, subd. (b).) July 22 is the latest possible date for a continuance. (*Id.*, § 703.570, subd. (a)(1).) If a Proof of Service showing proper service on the Judgment Debtor is filed prior to the next hearing, the hearing on the Claim of Exemption will proceed. However, if no proper Proof of Service is filed prior to the next hearing, the Court will be forced to deny the Notice of Opposition, as there is no showing in the file for good cause to extend the hearing past 30 days from the date of filing the notice of opposition. (*Ibid.*)

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Marie-Louise Sardeman

26PR000133

PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. Petitioner shall immediately submit Proposed order (DE-140) and letters (DE-150) for the Court's signature. The matter is set for a Status Hearing Re: Final Distribution on July 16, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The Clerk is directed to provide notice to the parties.

[1] PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF’S SPECIAL INTERROGATORIES, SET THREE AND REQUEST FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall (1) serve further verified, substantive responses, without objection, to the Subject Discovery, and (2) pay to Pearce, care of his attorney of record, sanctions in the amount of \$2,025. Pearce is directed to provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Jarred Pearce (“Pearce”) moves, pursuant to Code of Civil Procedure sections 2017.010, 2023.010, 2023.030, and 2031.310,¹ for an order compelling Defendant Modern Cooperage USA LLC (“Defendant”) to serve further verified responses to Pearce’s Special Interrogatories, Set Three, Nos. 44-58 (collectively, “Subject Discovery”). Pearce further seeks monetary sanctions against Defendant and its counsel of record, DLA Piper LLP (US), jointly and severally, in the amount of \$3,850.00. The Motion is brought on the grounds that Defendant’s objection-only responses are deficient because Defendant asserted boilerplate objections and has refused to provide substantive responses.

While neither Pearce’s Notice of Motion nor Memorandum cite to the applicable authority for compelling further responses to *interrogatories*, instead only citing to section 2031.310, Defendant waives that procedural defect by failing to raise an objection to it and filing a substantive opposition to the merits of the Motion.

Defendant spends considerable time discussing how Pearce’s anticipated First Amended Complaint to add BIT365, Inc. as a defendant will “obviate” and render “moot” “much of” the present motion. (See Opp., 2:22-3:2, 3:19-4:9, fn. 1; see also Declaration of Elias Parisca (“Parisca Decl.”), ¶¶ 4-9.) Defendant does not articulate in what way the motion will be rendered moot by the addition of that defendant. The Court draws a reasonable inference that, if BIT365 is added as a defendant, Defendant’s objection on relevance grounds will be removed. This inference is reasonably drawn from Defendant’s emphasis in Opposition on the point that

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

BIT365 is a non-party entity and therefore its confidential information has no bearing on the claims in the operative complaint.

As further discussed below, the Court finds the Subject Discovery relevant to the operative complaint and issues discovered thus far in the case. As such, it was not unreasonable for Pearce to refuse Defendant's request to withdraw or continue the present motions until the First Amended Complaint is filed.

B. LEGAL STANDARD

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems an objection to an interrogatory is without merit or too general. (§ 2030.300, subd. (a)(3).)

If a timely motion to compel is filed, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but "the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.) To show an interrogatory seeks relevant, discoverable information "is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section." (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

C. DISCUSSION

Despite that burden-shifting scheme, Pearce's moving papers sufficiently explain the relevance of the Special Interrogatories to the case. Namely, Pearce alleges that Defendant failed to pay him all wages earned during his employment, including wages owed at the time of his termination. (Compl., ¶¶ 56-60.) Plaintiff contends that Defendant induced him to continue working without pay by representing that he would receive a significant ownership interest as part of his compensation package. (Declaration of Caitlin E. Macker ("Macker Decl.") ¶ 5, Ex. 2.) Despite those representations, Plaintiff was ultimately granted 280,000 shares of stock in BIT365, Inc., which Defendant's counsel has later represented in this action is Defendant's parent company and sole owner. (*Id.*, ¶¶ 5, 8, Ex. 2.) Plaintiff contends that the stock did not provide the value Defendant represented it would provide and did not compensate Plaintiff for the wages he earned but was never paid. (*Ibid.*) Plaintiff also alleges that Defendant unlawfully terminated him after he exercised his right to take job-protected paternity leave. (Compl., ¶¶ 27-54.) Defendant's stated justification for terminating Plaintiff's employment was that Defendant lacked sufficient funding to continue employing him. (Macker Decl., ¶ 9, Ex. 5.)

The Special Interrogatories at issue seek information regarding: (1) the value of the stock issued to Pearce (Nos. 45-49); (2) the basis for that valuation (Nos. 45-49); (3) Defendant's decision to provide Plaintiff this compensation and the individuals involved in that decision (Nos. 44, 57-58); (4) Defendant's relationship with BIT365 (No. 56); and (5) the financial condition and capitalization of the entities involved (Nos. 50-55).

In Opposition, Defendant elected not to file a responsive separate statement. Rather, Defendant argues in support of its objections to the Subject Discovery, as a whole.

Defendant argues that its objections correctly identified the Subject Discovery as: (1) not relevant and not reasonably calculated to lead to the discovery of admissible evidence because no pled claim implicates the information sought; (2) vague, ambiguous, overbroad, and unduly burdensome given the absence of any nexus to the operative claims and the lack of any time or scope limitation; (3) seeking trade secret, confidential, and proprietary financial information of a non-party; and (4) implicate the protected privacy interests of BIT365 and its investors.

The first two categories of objections are based on the absence of a nexus between the Subject Discovery and the allegations pled in the operative Complaint. However, this ignores the relevance of the Subject Discovery to Pearce's claims as further described in Pearce's verified response to Defendant's Special Interrogatories and Defendant's express reason for terminating his employment, both of which Pearce raised and discussed in his moving papers. (Macker Decl., ¶¶ 5, 9, Exs. 2, 5.) "Relevancy to the subject matter of the litigation is a much broader concept than relevancy to the precise issues presented by the pleadings. [Citation.] 'The 'subject matter of the action' is the circumstances and facts out of which the cause of action arises; it is the property, contract, or other thing involved in the dispute; it is not the act or acts which constitute the cause of action, but describes physical facts in relation to which the suit is prosecuted.' [Citation.]" (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1760.)

Defendant's only acknowledgement of Pearce's representation of the factual bases to which the Discovery Requests are relevant is Defendant's assertion that its defense of insufficient funding does not open the door to BIT365's records because the defense is specifically that Defendant's lacked "operational funding—its ability to sustain payroll for Plaintiff's position at the time of separation," which "does not open the door to the internal corporate structure, capitalization, valuation, investor identity and communications, or complete financial records of a separate parent entity." (Opp., 8:26-9:4.) Not only is this response cursory, Defendant does not cite to a pleading or other document which specifies "operational funding" as the reason for termination, nor does the Court necessarily agree that a defense of insufficient *operational* funding somehow limits discovery to a company's financial records.

Based on the foregoing, Defendant has failed to justify its first two categories of objections.

With respect to the third and fourth categories of objections, Defendant fails to satisfy its burden. "In *Hill*, we established a framework for evaluation potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552.)

Defendant fails to discuss an objectively reasonable expectation of privacy in the given circumstances (i.e., Defendant's alleged reason for terminating Plaintiff's employment being insufficient funds, Defendant representing that BIT365 is its parent company, Defendant allegedly compensating Plaintiff through BIT365 stocks with assurances it provided meaningful compensation, etc.) or a threatened intrusion that is serious, as Defendant fails to rebut, much less acknowledge, Pearce's contention that the parties' current protective order is sufficient to protect privacy interests while producing responsive documents.

The Court notes that another category of objections addressed by Pearce, but not addressed by Defendant, is the claim of attorney client privilege and work product doctrine. The Court finds that Defendant has failed to justify those objections. Not only does Defendant fail to meaningfully address them in Opposition, Defendant's responses to the Subject Discovery do not provide sufficient factual information for other parties or the Court to evaluate the merits of that claim, nor does the Court believe that Special Interrogatories, seeking underlying facts, necessarily invoke those privileges.

For all the foregoing reasons, the Motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall serve further verified, substantive responses, without objection, to the Subject Discovery.

Pearce's request for sanctions, pursuant to section 2030.300, subdivision (d) is GRANTED IN PART. "[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully ... opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2030.300, subd. (d).) The Court finds neither that Defendant acted with substantial justification nor that other circumstances make imposition of sanctions unjust. The Court does not find that the hourly rate charged by counsel is reasonable within the customary range charged in the Napa community. (See Macker Decl. at ¶ 10.) The Court reduces the hourly rate to \$450. The Court finds that 4.5 hours is a reasonable number of billable hours for preparation of the motion. (*Id.*, ¶ 11) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Defendant is ordered to pay to Pearce, care of his attorney of record, within 21 calendar days of notice of entry of this order, sanctions in the amount of (4.5 hrs x \$450/hr) = \$2,025.

[2] PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR IDENTIFICATION AND PRODUCTION OF DOCUMENTS, SET THREE AND REQUEST FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall (1) serve further verified responses to the Subject Discovery and produce all responsive documents in accordance with this ruling, and (2) pay to Pearce, care of

his attorney of record, sanctions in the amount of \$2,925. To the extent Defendant feels the need to maintain any of its privilege objections, the further responses shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log. Pearce is directed to provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Jarred Pearce ("Pearce") moves, pursuant to Code of Civil Procedure sections 2017.010, 2023.010, 2023.030, and 2031.310,² for an order compelling Defendant Modern Cooperage USA LLC ("Defendant") to serve further verified responses to Pearce's Requests for Identification and Production of Documents ("Requests"), Set Three, Nos. 43-67 (collectively, "Subject Discovery"), and to produce all responsive documents. Pearce further seeks monetary sanctions against Defendant and its counsel of record, DLA Piper LLP (US), jointly and severally, in the amount of \$4,950.00. The Motion is brought on the grounds that Defendant's objection-only responses to the Subject Discovery are deficient because Defendant asserted boilerplate objections, failed to provide substantive responses, and refused to produce responsive documents.

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must "set forth specific facts showing good cause justifying the discovery sought by the demand." (§ 2031.310, subd. (b)(1).) "[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance." (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement." (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

Pearce argues that the Requests relate to two central issues in the case. First, Pearce alleges that Defendant induced him to continue working for months without wages by promising meaningful equity compensation. (See Compl., ¶¶ 56-60; Declaration of Caitlin E. Macker ("Macker Decl.") ¶ 5, Ex. 2, 2:5-14.) Defendant ultimately granted Pearce 280,000 shares of stock in a separate entity, BIT365, Inc., which Defendant's counsel has later represented in this

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

case is Defendant's parent company and sole owner. (Macker Decl., ¶ 5, Ex. 2, 2:15-16, ¶ 8.) Pearce seeks documents concerning the value of that stock (Nos. 55-61), the basis for Defendant's valuation and representations regarding it (Nos. 43-47, 55-61), and the relationship between Defendant and BIT365 (Nos. 48-54, 59-63, 66-67). Pearce argues those documents go directly to Pearce's wage claims and damages.

Second, Defendant's stated reason for terminating Pearce's employment was because it lacked sufficient funds or means of generating income to support his salary. (Compl., ¶¶ 27-54; Macker Decl., ¶ 9, Ex. 5.) Pearce seeks documents concerning Defendant's capitalization, financing activities, and investor communications (Nos. 43-47, 62, 64-65), and ownership structure and relationship with BIT365 (Nos. 43-54, 62-67). Pearce contends these documents are directly relevant to Defendant's stated justification for Pearce's termination and to Pearce's alter ego allegations.

Based on the foregoing, the Court finds that Pearce has met his burden to show good cause for the Subject Discovery.

In Opposition, Defendant elected not to file a responsive separate statement. Rather, Defendant argues in support of its objections to the Subject Discovery, as a whole.

Defendant contends its objections asserted to the Subject Discovery are substantively justified because the Subject Discovery: (1) seeks documents which are not relevant and not reasonably calculated to lead to the discovery of admissible evidence because no pled claim implicates the information sought; (2) is vague, ambiguous, overbroad, and unduly burdensome given the absence of any nexus to the operative claims and the lack of any time or scope limitation; (3) seeks trade secret, confidential, and proprietary financial information of a non-party; (4) implicates the protected privacy interests of BIT365 and its investors; and (5) reaches privilege communications given the multiple requests for "all communications," without any limitation. (Opp., 9:9-15.)

The first two categories are based on the absence of a nexus between the Subject Discovery and the allegations pled in the operative Complaint. However, this ignores the relevance of the Subject Discovery to Pearce's claims as further described in Pearce's verified response to Defendant's Special Interrogatories and Defendant's express reason for terminating his employment, both of which Pearce raised and discussed in his moving papers. (Macker Decl., ¶¶ 5, 9, Exs. 2, 5.) "Relevancy to the subject matter of the litigation is a much broader concept than relevancy to the precise issues presented by the pleadings. [Citation.] 'The 'subject matter of the action' is the circumstances and facts out of which the cause of action arises; it is the property, contract, or other thing involved in the dispute; it is not the act or acts which constitute the cause of action, but describes physical facts in relation to which the suit is prosecuted.' [Citation.]" (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1760.)

Defendant's only acknowledgement of Pearce's representation of the factual bases to which the Subject Discovery are relevant is Defendant's assertion that its defense of insufficient funding does not open the door to BIT365's records because the defense is specifically that Defendant's lacked "operational funding—its ability to sustain payroll for Plaintiff's position at

the time of separation,” which “does not open the door to the internal corporate structure, capitalization, valuation, investor identity and communications, or complete financial records of a separate parent entity.” (Opp., 8:26-9:4.) Not only is this response cursory, Defendant does not cite to a pleading or other document which specifies “operational funding” as the reason for termination, nor does the Court necessarily agree that a defense of insufficient *operational* funding somehow limits discovery to a company’s financial records.

Based on the foregoing, Defendant has failed to justify its first two categories of objections.

With respect to the third and fourth categories, Defendant fails to satisfy its burden. “In *Hill*, we established a framework for evaluation potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552.) Defendant fails to discuss an objectively reasonable expectation of privacy in the given circumstances (i.e., Defendant’s alleged reason for terminating Plaintiff’s employment being insufficient funds, Defendant representing that BIT365 is its parent company, Defendant allegedly compensating Plaintiff through BIT365 stocks with assurances it provided meaningful compensation, etc.) or a threatened intrusion that is serious, as Defendant fails to rebut, much less acknowledge, Pearce’s contention that the parties’ current protective order is sufficient to protect privacy interests while producing responsive documents.

With respect to the fifth category, Defendant fails to provide sufficient factual information for other parties or the Court to evaluate the merits of that claim. (§ 2031.240, subd. (c)(1).) In providing further responses to the Subject Discovery, should Defendant feel the need to maintain its privilege objections, Defendant shall produce a privilege log simultaneously with its further responses. (§ 2031.240, subds. (c)(1)-(2).)

For all the foregoing reasons, the Motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall serve further verified responses to the Subject Discovery and produce all responsive documents.

Pearce’s request for sanctions pursuant to section 2031.310, subdivision (h) is GRANTED IN PART. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully ... opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2031.310, subd. (h).) The Court finds neither that Defendant acted with substantial justification nor that other circumstances make imposition of sanctions unjust. The Court does not find that the hourly rate charged by counsel is reasonable within the customary range charged in the Napa community. (See Macker Decl. at ¶ 10.) The Court reduces the hourly rate to \$450. The Court finds that 6.5

hours is a reasonable number of billable hours for preparation of the motion. (*Id.*, ¶ 11) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Defendant is ordered to pay to Pearce, care of his attorney of record, within 21 calendar days of notice of entry of this order, sanctions in the amount of (6.5 hrs x \$450/hr) = \$2,925.

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In The Matter of Courtney Alohalani Robinson

26CV001137

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on May 27, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to August 06, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.

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In The Matter of Lidia Sigova

26CV001223

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on June 08, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to August 06, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.

GUARDIANSHIP CALENDAR – Commissioner Douglas Skelton, Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Braulio Reyes Carreta v. Flor De Maria Carreta De La Cruz

26FL000268

CONFIDENTIAL REQUEST FOR SPECIAL IMMIGRANT JUVENILE FINDINGS [FL-356]

TENTATIVE RULING: The matter is CONTINUED to September 4, 2026, at 2:00 p.m. in Dept. 6 to allow Petitioner to file and serve the Petition to Determine Parental

Relationship (Judicial Council Form FL-200) as indicated in Paragraph 6(b) of Form FL-356, filed 4/24/26.

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Guardianship of Benjamin Sanchez

26PR000047

PETITION FOR APPOINTMENT OF GUARDIAN OF MINOR

TENTATIVE RULING: The matter is CONTINUED to August 21, 2026, at 2:00 p.m. in Dept. 6.

By Minute Order dated May 01, 2026, the matter was continued in part to allow Petitioner to file specified missing documents. There remains in the file no Parental Notification of Indian Status (ICWA-020 form).

This is the third continuance of the matter. The clerk is directed to provide notice of the continued hearing to Petitioner.

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Guardianship of Carlos Julian Robles Almeida

26PR000076

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
- [2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for July 16, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that she will receive a blank Status Report (GC-251 Form) in the mail in approximately 11 months that she will be required to complete and return to the Court. Timely filing of the form may result in the hearing being vacated.

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Guardianship of Juan Pablo Garcia Rodriguez et al

26PR000108

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
- [2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are CONTINUED to September 04, 2026, at 2:00 p.m. in Dept. 6 to allow Petitioner to remedy the following issues:

With respect to the Guardianship Petition,

1. There is no completed proof of mail service, with 15 days' notice, on maternal grandfather Ramon Rodriguez Barajas. (Prob. Code, § 1511.) To the extent Petitioner wishes to dispense with the notice requirement as to anyone entitled

to notice, Petitioner must file a declaration of diligence, request to dispense with notice, and proposed order dispensing with notice.

With respect to the Special Immigrant Juvenile Findings Petition,

1. There is no completed proof of service, with 15 days' notice, by mail on the ward's parents. (Rules of Court, rule 7.1020, subd. (c); Prob. Code, § 1460.) To the extent Petitioner wishes to dispense with the notice requirement as to anyone entitled to notice, Petitioner must file a declaration of diligence, request to dispense with notice, and proposed order dispensing with notice.
2. There is no Proposed order (GC-224) on file per (See CCP 155(b)).

This is the first continuance of the matter.

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Guardianship of Amanii Daniela Rose Quinnine

26PR000121

PETITION FOR APPOINTMENT OF GUARDIAN OF MINOR

TENTATIVE RULING: The matter is CONTINUED to August 21, 2026, at 2:00 p.m. in Dept. 6 to allow Petitioner to remedy the following issue:

1. There is no completed proof of mail service, with 15 days' notice, on paternal grandfather Andre Quinnine Sr. (Prob. Code, § 1511.) To the extent Petitioner wishes to dispense with the notice requirement as to anyone entitled to notice, Petitioner must file a declaration of diligence, request to dispense with notice, and proposed order dispensing with notice.